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SIMPLYTRUST SOFTWARE INC.

STOCKHOLDERS' AGREEMENT

THIS STOCKHOLDERS' AGREEMENT, made effective [1/20/25] ("Effective Date"), is by and between **[** Charlie Smith]([Charlie "), sometimes referred to herein individually as a "Stockholder"), and **SIMPLYTRUST SOFTWARE INC.**, a Delaware corporation ("Company").

R E C I T A L S:

A. The Stockholders have each entered into an agreement (each, a "Subscription Agreement") with the Company to provide services thereto in exchange for common stock of the Company ("Shares") as more particularly set forth therein;

B. The Stockholders desire to enter into an agreement in connection with the Shares, upon the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained in this Agreement, the parties hereto agree as follows:

1. **Restriction on Stock Transfer**.

a. During the term of this Agreement, none of the Shares now owned or hereafter acquired by any of the Stockholders may be transferred voluntarily, involuntarily, or by operation of law, unless:

i. such transfer of Shares shall be authorized by the Company's Board of Directors;

ii. the proposed transferee of such Shares shall deliver to the Company a written acknowledgment that the Shares to be transferred are subject to this Agreement and that the proposed transferee and its successors in interest are bound hereby; and if that the proposed transferee is a corporation or other business entity, such entity shall furnish such additional written agreements, undertakings, documents and evidence as the Company shall reasonably request relating to such proposed transfer, and which will prevent any direct or indirect transfer of the Shares which, if made directly, would violate the provisions of this Agreement; and

iii. such transfer shall be made pursuant to an effective registration under the Securities Act and any applicable state securities laws, or an exemption from such registration, and prior to any such transfer the Stockholder proposing to transfer Shares shall give the Company (A) notice describing the manner and circumstances of the proposed transfer (copies of which the Company shall furnish to any Stockholder upon request) and (B) if

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reasonably requested by the Company, a written opinion of legal counsel who shall be satisfactory to the Company and its counsel, such opinion to be in form and substance satisfactory to the Company and its counsel, to the effect that the proposed transfer of Shares may be effected without registration under the Securities Act and any applicable state securities laws.

b. Any attempted transfer of Shares other than in accordance with this Agreement shall be null and void and the Company shall refuse to recognize any such transfer and shall not reflect on its records any change in record ownership of Shares pursuant to any such transfer, nor shall any of such Shares be entitled to vote, nor shall any dividends be paid thereon during the period of any violation. Such disqualification shall be in addition to and not in lieu of any other remedies, legal or equitable, to enforce the provisions of this Agreement.

c. The closing of any transfer of Shares shall take place at the offices of the Company unless otherwise agreed by the parties involved in the transfer. Any Stockholder who transfers Shares shall (i) do all things and execute and deliver all such papers as may be necessary or reasonably requested by the Company in order to consummate the transfer of such Shares and (ii) pay to the Company such amounts as may be required for any applicable stock transfer taxes and to pay any expenses incurred by the Company in connection with such transfer (including reasonable attorneys' fees).

2. **Drag-Along Right**. If the Board accepts a bona fide offer ("Bona Fide Offer") for the purchase of the Company, all Stockholders shall be required to (i) sell all their Shares, free of any encumbrance, in the transaction contemplated by the Bona Fide Offer, and (ii) otherwise take all necessary action to cause the consummation of such transaction, including voting his or her Shares in favor of such transaction and not exercising any appraisal rights in connection therewith ("Drag-Along Right"); provided that consideration to be received by each Stockholder shall be his or her pro rata portion of the total net consideration paid by the purchaser (based on each Stockholder's Shares), after deduction of his or her pro rata share of the related expenses. The Board shall exercise the Drag-Along Right by giving notice thereof to all Stockholders (each a "Drag-Along Seller") within seven days of acceptance of the Bona Fide Offer ("Drag-Along Option Period"). Each Drag-Along Seller further agrees to take all actions (including executing documents) in connection with consummation of the proposed transaction as may reasonably be requested of him or her.

3. **Sale Upon Involuntary Transfer**.

a. Upon an Involuntary Transfer or impending Involuntary Transfer of a Stockholder ("Disaffected Stockholder"), the Company and the other Stockholders shall have the collective right to purchase all, but not less than all, of the Disaffected Stockholder's Shares by giving written notice to the Disaffected Stockholder within ninety (90) days of the Involuntary Transfer under the following terms and conditions:

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i. First, the Company shall have the right to purchase any Shares;

ii. Second, each Stockholder, other than the offering Disaffected Stockholder, shall have the right to purchase any remaining Shares in such proportion as the number of Shares each Stockholder bears to the total number of Shares owned by all Stockholders who are parties to this Agreement, exclusive of the Shares owned by the Disaffected Stockholder; and

iii. Third, if a Stockholder or Stockholders waive(s) the right to purchase a portion of the remaining Shares, the other Stockholders who exercise their right to purchase a portion of the Shares shall have the right to purchase the Shares over which the right to purchase has been waived, in such proportion as the number of Shares owned by each such Stockholder exercising his right to purchase bears to the total number of Shares owned by all Stockholders who are parties to this Agreement exercising their right to purchase.

4. **Purchase Price of Stock**. The per-share purchase price of any Share purchased pursuant to Section 2 ("Purchase Price") shall be an amount equal to (a) the Appraised Value, divided by (b) the total number of issued and outstanding Shares; provided, however, that if the Involuntary Transfer is a removal of a Stockholder from the Company for Cause, the Purchase Price shall be reduced by 33.33%.

5. **Payment of Purchase Price**. The Purchase Price shall be paid in no more than eight consecutive quarterly installments beginning no more than ninety (90) days after the date of closing of the sale of shares. At the closing the purchaser shall deliver to the seller a duly-executed negotiable promissory note, with interest at an annual rate equal to the long-term Applicable Federal Rate under the Internal Revenue Code of 1986, as amended in effect on the date of the note, payable with each quarterly installment payment. Such note shall include the following provisions:

a. In the event of default in the payment of principal or interest for a period of thirty (30) days, the unpaid balance of principal and interest of the note shall, upon twenty (20) days' notice, immediately become due and payable at the election of the holder;

b. The note shall provide that its maker agrees to pay the reasonable expenses of collection in the event of default, including reasonable attorneys' fees; and

c. The note shall provide that its maker has the option of prepayment in whole or in part at any time without penalty.

6. **Execution of Instruments to Effect the Terms of the Agreement**. The parties shall make, execute and deliver any documents necessary to carry out the provisions of this Agreement. This Agreement shall be binding upon the Stockholders, their distributees, legal representatives, successors and assigns.

7. **Restrictive Covenants**.

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a. Non-Compete, Non-Solicitation. Beginning on the date hereof and through the date that is one year following the day a Stockholder no longer owns any Shares (the "Restricted Period"), a Stockholder will not, and will cause his or her affiliates not to, directly or indirectly, through or in association with any third party, in any territory which the Company operates:

i. (A) engage in, market, sell, or provide any products or services which are the same or similar to or otherwise competitive with the products and services sold or provided by the Company, or (B) own, acquire, or control any interest, financial or otherwise, in a third party or business or manage, participate in, consult with, render services for or otherwise, any business, that in each case is engaged in selling or providing the same, similar or otherwise competitive services or products which the Company is selling or providing, other than ownership of one percent or less of the equity of a publicly traded company;

ii. (A) call on, solicit, or service, engage or contract with, or take any action which may interfere with, impair, subvert, disrupt, or alter the relationship, contractual or otherwise, between the Company and any current or prospective customer, supplier, distributor, developer, service provider, licensor, or licensee or other material business relation of the Company, (B) divert or take away the business or patronage (with respect to products or services of the kind or type developed, produced, marketed, furnished, or sold by the Company) of any of the clients, customers, or accounts, or prospective clients, customers, or accounts, of the Company or (C) attempt to do any of the foregoing, either for Stockholder's own purposes or for any other third party; or

iii. solicit, induce, recruit, or encourage any employees or independent contractors of or consultants to the Company to terminate their relationship with the Company or take away or hire such employees, independent contractors, or consultants or (ii) attempt to do any of the foregoing, either for the Stockholder's own purposes or for any other third party.

iv. The restrictions set forth in this Section 7 shall not be construed to preclude a Stockholder from practicing law in accordance with a valid law license. This exclusion applies regardless of whether the Stockholder practices as a sole practitioner, is affiliated with a law firm, or operates under any other permissible structure consistent with applicable laws and regulations governing the legal profession.

b. Nondisclosure and Nonuse of Confidential Information.

i. Representations. Each Stockholder acknowledges that: (A) the Confidential Information (as hereinafter defined) is a valuable, special, and unique asset of the Company, the unauthorized disclosure or use of which could cause substantial injury and loss of profits and goodwill to the Company; (B) he or she is in a position of trust and subject to a duty of loyalty to the Company, and (C) he or she will have access to the Confidential Information.

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ii. Nondisclosure/Nonuse. Each Stockholder will not disclose or use at any time, either during his ownership of the Shares or thereafter, any Confidential Information (as hereinafter defined) of which he is or becomes aware, whether or not such information is developed by it, except to the extent that such disclosure or use is directly related to and required by a Stockholder's performance in good faith of duties to the Company; provided, however, that this sentence shall not be deemed to prohibit a Stockholder from complying with any subpoena, order, judgment, or decree of a court or governmental or regulatory agency of competent jurisdiction (an "Order"); provided, further, however, that (A) each Stockholder agrees to provide the Company with prompt written notice of any such Order and to assist the Company, at the Company's expense, in asserting any legal challenges to or appeals of such Order that the Company in its sole discretion pursues, and (B) in complying with any such Order, each Stockholder shall limit his or her disclosure only to the Confidential Information that is expressly required to be disclosed by such Order. Each Stockholder will take all appropriate steps to safeguard Confidential Information and to protect it against disclosure, misuse, espionage, loss, and theft. Each Stockholder shall deliver to the Company upon termination of his membership of the Company, or at any time the Company may request, all memoranda, notes, plans, records, reports, electronic information, files and software, and other documents and data (and copies thereof) relating to the Confidential Information or the Work Product (as hereinafter defined) of the business of the Company which he may then possess or have under his or her control.

c. Property; Inventions and Patents.

i. Property. Each Stockholder agrees that all inventions, innovations, improvements, technical information, systems, software developments, methods, designs, analyses, drawings, reports, service marks, trademarks, trade names, logos, products, equipment, and all similar or related information and materials (whether patentable or unpatentable) (collectively, "Inventions") which relate to the Company's actual or anticipated business, research and development, or existing or future products or services and which are conceived, developed, or made by him (whether or not during usual business hours and whether or not alone or in conjunction with any other person) while a Stockholder of the Company (and for the Restricted Period if and to the extent such Inventions result from any work performed for the Company, any use of the Company's premises or property or any use of the Company's Confidential Information) by the Company (including those conceived, developed, or made prior to the date of this Agreement) together with all patent applications, letters patent, trademark, brands, tradename and service mark applications or registrations, copyrights, and reissues thereof that may be granted for or upon any of the foregoing (collectively referred to herein as, the "Work Product"), belong in all instances to such Stockholder of the Company. Each Stockholder will promptly disclose such Work Product to the Company and perform all actions reasonably requested by the Company (whether during or after his membership of the Company) to establish and confirm the Company's ownership of such Work Product (including, without limitation, the execution and delivery of assignments, consents, powers of attorney, and other instruments) and to provide reasonable assistance to the Company (whether during or after his or her ownership of the Shares) in connection with the prosecution of any applications for patents, trademarks, brands, trade names, service marks, or reissues thereof or in the prosecution or defense of

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interferences relating to any Work Product. Each Stockholder recognizes and agrees that the Work Product, to the extent copyrightable, constitutes works for hire under the copyright laws of the United States and that to the extent Work Product constitutes works for hire, the Work Product is the exclusive property of the Company, and all right, title, and interest in the Work Product vests in the Company. To the extent Work Product is not works for hire, the Work Product, and all of a Stockholder's right, title, and interest in Work Product, including without limitation every priority right, is hereby assigned to the Company.

ii. Cooperation. Each Stockholder shall, during his ownership of the Shares and at any time thereafter, assist and cooperate fully with the Company in obtaining for the Company the grant of letters patent, copyrights, and any other intellectual property rights relating to the Work Product in the United States and/or such other countries as the Company may designate. With respect to Work Product, each Stockholder shall, during his or her ownership of the Shares and at any time thereafter, execute all applications, statements, instruments of transfer, assignment, conveyance or confirmation, or other documents, furnish all such information to the Company and take all such other appropriate lawful actions as the Company requests that are necessary to establish the Company's ownership of such Work Product. Each Stockholder will not assert or make a claim of ownership of any Work Product and each Stockholder will not file any applications for patents or copyright or trademark registration relating to any Work Product.

d. Severability. If any provision in this Section 9 shall for any reason be held to be excessively broad as to any activity or subject, it shall be construed, by limiting and reducing it, to be enforceable to the extent compatible with applicable law. If any provision in this Section 9 shall, notwithstanding the preceding sentence, be held illegal or unenforceable, such illegality or unenforceability shall not affect any other provision of this Section 9 but this Agreement shall be construed as if such illegal or unenforceable provision had never been contained herein.

e. No Waiver. The rights of the Company and obligations of the Stockholders set forth in this Section 9 are in addition to, and not in lieu of, all other rights and obligations provided by applicable law.

f. Survival. Notwithstanding anything contrary or inconsistent herein, the provisions of this Section 9, "Restrictive Covenants," shall survive the expiration or termination of this Agreement.

8. **Termination of the Agreement.** This Agreement shall terminate on: (a) written agreement of all the Stockholders that are parties to this Agreement then owning Shares of the Company; (b) dissolution, bankruptcy or insolvency of the Company; (c) death of all Stockholders then owning Shares of the Company, simultaneously or within a period of sixty (60) days; or (d) by resolution of the Board of Directors of the Company, provided, however, that if such termination shall have a direct and material adverse effect on a Stockholder, then such termination shall not be effective until such

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Stockholder provides his or her written consent to such termination, which shall not be unreasonably withheld or delayed.

9. **Miscellaneous Provisions**.

a. Notice. All notices, including offers and acceptances, shall be deemed to have been given if delivered or mailed, by certified or registered mail, to the parties entitled thereto at their addresses as contained in the records of the Company.

b. Governing Law. This Agreement shall be governed by the laws of the State of Delaware, without regard to principles of conflict of laws.

c. Modifications, Etc. No modification, termination or waiver shall be valid unless in writing and signed by the party sought to be changed thereunder.

d. Counterparts. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall be one and the same instrument.

e. Pronouns. Whenever from the context it appears appropriate, each term stated in either the singular or plural shall include the singular and the plural, and pronouns stated in either the masculine or feminine or in the neuter gender shall include the masculine, feminine and neuter genders.

f. Invalid Provision. The invalidity or unenforceability of any particular provision of this Agreement shall not affect the other provisions hereof, and the Agreement shall be construed in all respects as if such invalid or unenforceable provisions were omitted.

g. Successors and Assigns. This Agreement shall be binding upon and inure to the benefit of each of the parties hereto and any Person who may become a party hereto and their respective successors, heirs and legatees and permitted assigns.

h. Injunctive Relief. The Company and the Stockholders hereby declare that it is impossible to measure in money the damages which will accrue to the parties hereto by reason of the failure of the Company or any Stockholder to perform any of its obligations set forth in this Agreement. Therefore, the Company and the Stockholders shall have the right to specific performance of such obligations, and if any party hereto shall institute any action or proceeding to enforce the provisions hereof, each of the Company and the Stockholders hereby waives the claim or defense that the party instituting such action or proceeding has an adequate remedy at law.

i. Certain Definitions. Capitalized terms used but not defined in the text of this Agreement shall have the following meanings:

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i. "Affiliate" shall mean, as to any Person, any other Person which directly, or indirectly through one or more intermediaries, controls, or is controlled by, or is under common control with the specified Person. As used in this Agreement, "control" (including, with its correlative meanings, "controlled by" and "under common control with") shall mean possession, directly or indirectly, of power to direct or cause the direction of management or policies (whether through ownership of securities or partnership or other ownership interests, by contract or otherwise).

ii. "Appraised Value" means the fair market value of the Company set forth in the Company's most recent 409A valuation performed prior to the subject Involuntary Transfer.

iii. "Cause" means a Stockholder's (A) breach of its fiduciary duties to the Company or any of its Affiliates, (B) act of fraud with respect to the Company or any of its Affiliates, (C) commission of a felony or a crime involving moral turpitude, (D) act or omission causing material harm to the standing and/or reputation of the Company or any of its Affiliates (other than any act or omission relating to a business decision made in good faith by such Stockholder), (E) act of gross negligence or corporate waste in connection with the Company or any of its Affiliates, (F) commission of any intentional tort against the Company or any of its Affiliates causing loss, damages or harm to the Company or any of its Affiliates, (G) material breach of this Agreement, or (H) failure to render services to the Company or any of its Affiliates in accordance with such Stockholder's Subscription Agreement.

iv. "Confidential Information" means information that is not generally known to the public (including the existence and content of this Agreement) and that is used, developed, or obtained by the Company in connection with its business, including, but not limited to, information concerning (A) the business or affairs of the Company (or such predecessors), (B) products or services, (C) fees, costs and pricing structures, (D) designs, (E) analyses, (F) drawings, photographs and reports, (G) computer software and hardware, including operating systems, applications and program listings, (H) flow charts, manuals and documentation, (I) databases and data, (J) accounting and business methods, (K) inventions, devices, new developments, methods, and processes, whether patentable or unpatentable and whether or not reduced to practice, (L) customers and clients (and all information with respect to such persons) and customer or client lists, (M) suppliers (and all information with respect to such persons) or supplier lists, (N) other copyrightable works, (O) all production methods, processes, technology, and trade secrets, and (P) all similar and related information in whatever form.

v. "Disability" means a Stockholder becomes physically or mentally disabled such that he is unable to render substantially all of the services previously performed by such Stockholder for the Company for six consecutive months or eight months in any 12-month term after the onset of the condition causing such disability.

vi. "Involuntary Transfer" shall mean; (A) a Stockholder's death or Disability; (B) any transfer made on account of a court order or otherwise by operation of law,

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including (1) a transfer incident to any divorce or marital property settlement or any transfer pursuant to applicable community property, quasi-community property or similar state law, (2) if there shall be filed by or against any Stockholder in any court pursuant to any statute of the United States or any state a petition in bankruptcy or insolvency or for reorganization or for the appointment of a receiver or trustee of all or a portion of such Stockholder's property, and if within sixty (60) days thereof the said Stockholder fails to secure a discharge thereof, or if said Stockholder makes an assignment for the benefit of creditors or petitions for or enters into an arrangement for the benefit of his creditors; (C) the Board of Directors removes a Stockholder from the Company for Cause; and (D) any other transfer, assignment or disposition of Shares unauthorized by the Board.

vii. "Person" shall mean any individual, firm, corporation, partnership, trust, joint venture or other entity, and shall include any successor (by merger or otherwise) of such entity.

viii. "Securities Act" means the Securities Act of 1933, as amended, and the rules and regulations promulgated thereunder.

j. Interpretation. The headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of this Agreement.

k. Further Assurances. Each of the Stockholders and the Company shall execute such documents and other papers and take such further actions as may be reasonably requested by another party to carry out the provisions hereof.

l. Entire Agreement. This Agreement contains the entire agreement and understanding between the parties hereto with respect to matter covered hereby and supersedes all prior agreements and understandings, written or oral, among the parties with respect to the subject matter hereof.

[Signature Page Follows]

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IN WITNESS WHEREOF, the parties have executed and sealed this Agreement as of the date first above written.

STOCKHOLDERS:

DocuSigned by:
Charlie Smith
06766584B0694AE...
Charlie Smith

SIMPLYTRUST SOFTWARE INC.

Signed by:
By: Phillip Reyland
3E1B55C7A868430...
Phillip Reyland, President

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